MEMORANDUM OF AGREEMENT

KNOW ALL MEN BY THESE PRESENTS:

This Memorandum of Agreement (MOA) entered into and executed by and between:

The **COMMISSION ON HIGHER EDUCATION (CHED)**, a government agency with principal office at Higher Education Development Center, C.P. Garcia Avenue, UP Diliman, Quezon City, represented herein by its Chairman, **J. PROSPERO E. DE VERA III, DPA** and hereinafter referred to as the "**GRANTOR**"

and

The **PARTIDO STATE UNIVERSITY – TINAMBAC CAMPUS**, a public Higher Education Institution, with official address at Binalay, Tinambac, Camarines Sur, represented herein by its President, **RAUL G. BRADECINA, Ph.D.,** and hereinafter referred to as the **"GRANTEE"**

WITNESSETH That,

WHEREAS, the **GRANTOR** is mandated by law to promote affordable, quality and relevant higher education that is accessible to all, ensure continuing intellectual growth and foster advancement of learning and research in higher education in the Philippines;

WHEREAS, the **GRANTOR** recognizes that there is a need to provide additional financial support to the **GRANTEE** in order to upgrade their institutional capability and sustain the development efforts towards meeting the challenges of producing the required man power resources needed for accelerated national development;

WHEREAS, the **GRANTOR** has included the budget for the activity under the Research, Development and Extension Grants-In-Aid program, which was approved by the **GRANTOR** through Commission *en Banc* Resolution No. 240-2022, herein attached as Annex A; and

NOW, THEREFORE, for and in consideration of the foregoing premises, the parties hereto hereby agree as follows:

I. ROLES AND RESPONSIBILITIES OF THE PARTIES

1. The **GRANTOR** shall:

   1.1 Through the Higher Education Development Fund (HEDF) Secretariat, provide funding assistance through **BANK TRANSFER** to the **GRANTEE** in the amount not to exceed Four Million and Five Hundred Thousand pesos **(Php 4,500,000.00)** for participating in the program/project titled, *"Mangrove Ecosystem Services Assessment for Conservation Strategies and Stakeholders' Willingness to Pay in San Miguel Bay"*; and

   1.2 Through its Monitoring and Evaluation Team, see to it that funds provided to the **GRANTEE** shall be used properly and exclusively for the purpose specified.

2. The **GRANTEE** shall:

   2.1 Properly utilize the funds provided by the **GRANTOR** and ensure that these are used exclusively for the purpose for which the same are intended subject to the applicable accounting and auditing rules and regulations;

2.2 Deposit the funds received from the **GRANTOR** with any government authorized depository bank nearest the program site;

2.3 Issue an Official Receipt for every amount received from CHED-HEDF Secretariat;

2.4 Separately keep and maintain any/all necessary accounting books and records for the event shall be subject to the monitoring and evaluation of CHED-HEDF's authorized representative/s and furnish fully the certified true copies of any/all documents required;

2.5 Submit to the **GRANTOR**, through the Office of the Director III, Higher Education Development Fund Staff (HEDFS), financial report/summary of expenses certified correct by the Accountant and approved by the **PARTIDO STATE UNIVERSITY** President or authorized representative, and verified by the internal/external auditor within sixty (60) days from the date of the completion of the Project;

2.6 Submit to the **GRANTOR**, through the Office of Director IV, Office of Planning, Research and Knowledge Management (OPRKM), along with the aforementioned liquidation report, a comprehensive terminal report duly signed by the person/s in-charge and approved by the **PARTIDO STATE UNIVERSITY** President or authorized representative within sixty (60) days from the date of the completion of the Project;

2.7 Return to **GRANTOR** any/all unused balance of the program fund upon pre-termination or completion of the Project within forty-five (45) but not more than sixty (60) calendar days, pursuant to Executive Order No. 338;

2.8 Abide by the provisions of **COA Circular No. 94-013** which is made an integral part hereof and other governmental regulations directly or indirectly pertaining to projects funded either fully or partly by government agencies;

2.9 Faithfully observe the provisions of **RA No. 9184**, otherwise known as the **An Act Providing for the Modernization, Standardization and Regulation of the Procurement Activities of the Government and for Other Purposes**, and its implementing Rules and Regulations, if applicable; and

2.10 Adhere to the prescribed accounting entries for booking up of property purchased out of the funds.

II. INTELLECTUAL PROPERTY

The **PARTIES** hereby agree and understand that intellectual property rights, ownership and enjoyment thereof arising from this event shall be governed by the applicable provisions of **RA No. 10055**, otherwise known as **An Act Providing the Framework and Support for the Ownership, Management, Use and Commercialization of Intellectual Property Generated from Research and Development Funded by Government and for Other Purposes**, including their respective Rules and Regulations, as well as existing and future policies of the **GRANTOR** on Intellectual Property Rights such as but not limited to the following:

1. Any publication arising from the activities undertaken by virtue of and pursuant to this Agreement shall clearly establish and identify the Parties as the source of the output;
2. All reports arising from activities undertaken by virtue of and pursuant to this Agreement shall be made in the name of the Parties. The names of the principal authors, researchers and/or Program Leaders/Project Leaders shall be identified, recognized and included in the report; and
3. The **GRANTOR** shall have the right to freely use all data and findings by virtue of and pursuant to this Agreement for any of the purposes within its legal mandate.

III. DATA PROTECTION CLAUSE

The **GRANTEE** shall at all times observe the confidentiality of all information arising out of or as a result of the project and shall not disclose or permit disclosure of said information acquired from the **GRANTOR**, directly or indirectly, while performing the services pursuant to this Agreement or at any time thereafter without proper authorization from **GRANTOR**, provided that the foregoing provision shall not apply with respect to information (a) that is generally available to the public or (b) which are required by law, rules and regulations to be disclosed or submitted to a government or other regulatory authority.

The **Parties** adhere to the provisions of RA 10173, also known as the "Data Privacy Act of 2012" and its Implementing Rules and Regulations in all activities pertaining to the collection and management of data and information.

IV. OWNERSHIP OF PURCHASED EQUIPMENT AND FACILITIES

In the event that the research grant shall include provision for equipment and facilities, the **GRANTOR** reserves the right to ownership over the purchased equipment and facilities subject of the grant until full liquidation by the **GRANTEE** is completed. Transfer of ownership of the said equipment and facilities in favor of the **GRANTEE** shall ensue upon issuance of Invoice Receipt of property by the **GRANTOR**, or completion of any other required accounting and audit procedure for the purpose.

V. TERMINATION OF THE AGREEMENT

1. The **GRANTOR** may terminate the program for cause upon written notice one (1) month prior to termination. Cause for termination includes failure of HEI to make satisfactory progress in implementing the program, failure or inability to perform, non-availability or exhaustion of funds, or such other acts as may be considered by CHED as inimical to the interest of the government of the Republic of the Philippines and those that adversely affect the integrity of the Research, Development and Extension Grants-in-Aid Program.

2. Where cause for program termination is based on the **GRANTEE**'s failure or inability to perform, upon termination, the **GRANTEE** must refund that portion of the program funds paid or owed to the **GRANTOR** and allocated to the terminated project work. Only funds needed to meet existing obligation shall be retained. All other funds shall be refunded to the **GRANTOR**.

3. The **GRANTOR** reserves the right to take further actions, including but not limited to, filing of suit before the proper courts, disqualification from receiving any future grants, among others.

VI. EFFECTIVITY AND MODIFICATION

1. This Agreement shall take effect immediately upon the release of the program funds to the **GRANTEE** and shall be in effect for the approved period of 24 months, unless further extension is requested in writing not later than ninety (90) days prior to the expiration of the contract period. The said extension should be for a valid cause. The approval for an extension does not entitle the **GRANTEE** access to additional funds and any additional expenses that may be incurred as a result of the extension shall be in the account of the **GRANTEE**.

2. This Agreement may be modified upon the mutual written consent of the parties. For this purpose, the parties shall ensure that any modification shall have no adverse effect on any project already undertaken prior to the modification of this Agreement.

VII. SEPARABILITY CLAUSE

In the event that one or more provisions contained herein shall be held invalid, illegal or unenforceable in any respect and for any reason, the remaining provisions shall remain valid, legal and enforceable.

VIII. DOCUMENTS COMPRISING THE AGREEMENT

All appendages hereto attached are hereby expressly made an integral part of this Agreement by reference, excluding inconsistencies with any/all part, terms and conditions contained in this Agreement.

IN WITNESS WHEREOF, the parties hereto, through their respective representatives, have hereunto set their hands this JUL 01 2022 day of _____, 2022 at Quezon City, Philippines.

COMMISSION ON HIGHER EDUCATION
"CHED"

By:

J. PROSPERO E. DE VERA III, DPA
Chairman

PARTIDO STATE UNIVERSITY

"SUC"

By:

RAUL G. BRADECINA, Ph.D.
University President

Signed in the Presence of:

ROMEO B. MORCILLA, Ph.D.
Campus Dean
Partido State University – Tinambac Campus

ATTY. CINDERELLA FILIPINA S. BENITEZ-JARO
Executive Director IV
Commission on Higher Education

DIVINA P. CHICA
Project Leader (Principal Investigator)
Partido State University – Tinambac Campus
"Mangrove Ecosystem Services Assessment for Conservation Strategies and Stakeholders' Willingness to Pay in San Miguel Bay"

CERTIFIED AS TO AVAILABILITY OF FUNDS:

₱ 4,500,000.-

FOR:

MYRA PAZ B. MANALO
Chief Accountant
Higher Education Development Fund Staff
Commission on Higher Education
OR# 03-401369-2022-06-00913
06.13.2022

ACKNOWLEDGEMENT

REPUBLIC OF THE PHILIPPINES)
QUEZON CITY) **S.S.**

BEFORE ME, a Notary Public, for and in QUEZON CITY, this JUL 01 2022 day of _____, _____, personally appeared:

	Valid ID/ Passport no.	*Issued on/ Issued at*
J. PROSPERO E. DE VERA III, DPA *Chairman* *Commission on Higher Education*	CO-0394	24 February 2021 CHED Central Office, Quezon City
RAUL G. BRADECINA, Ph.D. *University President* *Partido State University*	P7648090B	21 SEPTEMBER 2021 DFA - LEGAZPI

Known to me to be the same person(s) who executed the foregoing instrument and who acknowledged to me that the same is their free and voluntary act and deed, and that of the institutions respectively represented.

The foregoing instrument refers to a Memorandum of Agreement (MOA) consisting of five (5) pages, including the page in which this Acknowledgement is written, signed by the parties, including their instrumental witnesses on each and every page thereof and sealed with my notarial seal.

WITNESS MY HAND AND SEAL, on the date and place above written.

Doc No. 332.
Page No. 67.
Book No. 53.
Series of 2022.

NOTARY PUBLIC
ATTY. RYAN C. CORTEZ
NOTARY PUBLIC
Commission no. Adm No. NP-077(2021-2022)
PTR No. 2564877, 01/27/2022, Quezon City
IBP No. 178358, 01/15/2022
Attorney's Roll No. 72112
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